

23STCV14250 23STCV14250

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C09%2F02%2F2026

Source SHA-256: c1afb63a598f76ce3e8f6100a4433bcd325f4b309004a05209f05e4f85414d0e

Case Number: 23STCV14250 Hearing Date: September 2, 2026 Dept: 408

Defendants General Sound Co. LTD., the Estate of Ronny Samimrad, and

Rozita S. Natanzi's Motion for

Judgment on the Pleadings is DENIED.

I.

BACKGROUND

On June 20, 2023, Plaintiff Behzad Binafard ("Plaintiff") filed a complaint against Defendants General Sound Co. LTD., the Estate of Ronny Samimrad, and Rozita S. Natanzi, as Trustee of the Ronny Samimrad Trust and Executor of the Estate of Ronny Samimrad ("Defendants"), alleging causes of action for:

1.

Breach of Contract;

2.

Common Counts: Money Lent;

3.

Common Counts: Money Paid;

4.

Common Counts: Open Book Account;

5.

Common Count: Account Stated;

6.

Fraudulent Concealment; and

7.

Accounting.

On September 15, 2023, Defendants
filed an answer to Plaintiff's complaint.

On September 5, 2025, the court denied
in part and granted in part Defendants' Motion to Quash Plaintiff's Deposition
Subpoena.

On June 26, 2026, the court denied
Defendants' Motion for Summary Judgment, or in the alternative, Summary
Adjudication.

On July 13, 2026, Defendants the Estate of Ronny
Samimrad, and Rozita S. Natanzi ("Moving Defendants") filed this Motion
for Judgment on the Pleadings. On August 20, 2026, Plaintiff filed an
opposition. On August 26, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

"A party may move for judgment on the pleadings." (Code Civ. Proc., § 438, subd. (b)(1).) "The motion provided for in this section may only be made on one of the following grounds: ... (A) If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (B) If the moving party is a defendant, that either of the following conditions exist: (i) The court has no jurisdiction of the subject of the cause of action alleged in the complaint. (ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(A)-(B).)

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Cloud v. Northrop Grumman Corp. (1998) 67

Cal.App.4th 995, 999 [citations omitted].) “In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged.” (Fire Ins. Exch. v. Super. Ct. (2004) 116 Cal.App.4th 446, 452.)

III.

DISCUSSION

Moving Defendants seek judgment on the pleadings on the seven causes of action alleged in Plaintiff’s complaint. (Motion, at pp. 4-5.) Moving Defendants argue that the agreement attached to the complaint as Exhibit B establishes on its face that the loan at issue was made to Defendant General Sound Co. LTD. (“General Sound”) as a corporation and not to Decedent Ronny Samimrad (“Samimrad”) as an individual. (Id., at pp. 4, 6-7.) Moving Defendants contend that despite Samimrad signing the loan agreement in its individual capacity, such signature does not create a personal obligation to repay the loan which is fatal to Plaintiff’s claims against Samimrad’s estate. (Ibid.)

The complaint alleges that Samimrad, on his own behalf and on the behalf of General Sound, borrowed a total of \$850,305.00 from Plaintiff. (Complaint, ¶ 9.) The complaint explains that, on January 5, 2015, Plaintiff, Samimrad, and General Sound entered into a written agreement providing that General Sound and Samimrad borrowed the sum of \$630,305.00 from Plaintiff. (Id., ¶ 11, Exh. B.) The agreement further stated that the loan amount was due and payable if Samimrad is unable or unwilling to continue to operate General Sound. (Id., ¶ 12.) As such, the loan became due when Samimrad passed away on April 15, 2023. (Id., ¶ 13.) The complaint also alleges that Plaintiff loaned an additional \$220,000.00 to Samimrad and General Sound from 2015 to 2017. (Id., ¶ 15.) On May 19, 2023, following Samimrad’s death, Plaintiff contacted Defendant Rozita S. Natanzi (“Natanzi”), the Trustee of the Ronny Samimrad Trust and Executor of the Estate of Ronny Samimrad, requesting payment for the loan amount from Samimrad’s estate. (Id., ¶¶ 18-19.) Natanzi subsequently denied the \$850,305 indebtedness. (Id., ¶ 20.)

Taking the allegations as true, in conjunction with the purported loan agreement attached

to the complaint as Exhibit B, Plaintiff sufficiently alleges Samimrad's personal obligation to repay the loans made to Samimrad and General Sound in the amount of \$850,305.00. The court cannot determine that Samimrad did not incur a personal obligation to repay the loan on the face of the complaint without having to ignore the explicit allegations asserting otherwise and the inclusion of Samimrad's signatures in his individual capacity and as president of General Sound. (Complaint, ¶ 11, Exh. B.) As such, the court finds that Plaintiff sufficiently alleges the first through fifth causes of action.

Moving Defendants

also argue that Plaintiff improperly named "The Estate of Ronny Samimrad" as a defendant as an estate is not a legal entity that either sue or be sued, rather the proper defendant is the decedent's personal representative. (Motion, at p. 8.)

The court agrees

that an "estate" is just a term of art that refers to the decedent's assets and liabilities; it is not a legal person that can sue or be sued. (Gee v. Greyhound Lines, Inc. (2016) 6 Cal.App.5th 477, 481 fn.2, quoting Estate of Bright v. Western Air Lines (1951) 104 Cal.App.2d 827, 828-829) However, Plaintiff has included Natanzi in her capacity as Trustee of the Ronny Samimrad Trust and Executor of the Estate of Ronny Samimrad. (Complaint, ¶ 5.) Although Plaintiff should remove the Estate of Ronny Samimrad as an individual defendant, Plaintiff may still seek recovery against the estate through Natanzi. Accordingly, such defect appears to be immaterial.

Moving Defendants

further argue that the sixth cause of action for fraudulent concealment fails as Plaintiff fails to allege a duty to disclose and that Plaintiff was unaware of the concealed fact. (Motion, at pp. 9-10.)

"Fraudulent concealment requires the 'suppression of a fact, by one who is bound to disclose it.'" (Huy Fong Foods, Inc. v. Underwood Ranches, LP (2021) 66 Cal.App.5th 1112, 1121, quoting Civ. Code, § 1710, subd. 3.) "Although, typically, a duty to disclose arises when a defendant owes a fiduciary duty to a plaintiff ..., a duty to disclose may also arise when a defendant possesses or exerts control over material facts not readily available to the plaintiff." (Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199.)

The complaint alleges that, pursuant to the purported loan agreement, Plaintiff was to receive one-half of the net profits of General Sound in lieu of interest on the loan; that Samimrad and General Sound had an affirmative duty to Plaintiff to conduct business with integrity and honestly; that Samimrad and General Sound concealed the misuse of over \$1,000,000.00 of General Sound's inventory with the intention of depriving Plaintiff of receiving his portion of General Sound's net profit. (Complaint, ¶¶ 46-51.)

The court finds that the complaint sufficiently alleges that Plaintiff was unaware of the inventory transaction as it was concealed from him. The complaint also sufficiently alleges that Samimrad and General Sound had a duty to disclose based on their exclusive knowledge of the transaction. (Jones, supra, 198 Cal.App.4th at 1199.) As such, the court finds that Plaintiff sufficiently alleges the sixth cause of action.

Lastly, Moving

Defendants argue that the seventh cause of action for accounting fails as the complaint does not plead a fiduciary relationship between Plaintiff and Samimrad and the amount for accounting is not unascertainable by ordinary means. (Motion, at pp. 10-11.)

"A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting. An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation." (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179, [citations and paragraph break omitted].)

The complaint alleges that the loan agreement creates a duty to account for all income, revenues, and profits derived from General Sound's operation for Plaintiff to receive his portion of such net profit under the agreement. (Complaint, ¶¶ 54-55.) The complaint further alleges that the amount of money due under the agreement is unknown and cannot be ascertained without an accounting of General Sound's revenue. (Id., ¶ 59.)

The court finds
that Plaintiff sufficiently alleges a claim for accounting based on the
obligations set out in the loan agreement. The complaint also sufficiently
alleges that the amount due to Plaintiff can only be ascertained by
an accounting. As such, Plaintiff sufficiently alleges the
seventh cause of action.

Accordingly, the
motion is denied.

IV.

CONCLUSION

Defendants General Sound Co. LTD., the Estate of Ronny Samimrad, and
Rozita S. Natanzi's Motion for
Judgment on the Pleadings is DENIED.